

MASTER SUPPLY AGREEMENT

Accenture BV and Meridian Data Solutions NV

Agreement Reference: VA/2024/MSA/0047 | Date: 1 March 2024

THIS MASTER SUPPLY AGREEMENT (the “**Agreement**”) is entered into as of 1 March 2024 (the “**Effective Date**”) by and between:

Accenture BV, a private limited liability company incorporated under the laws of the Netherlands, registered at the Dutch Chamber of Commerce under number 34117484, having its registered office at Gustav Mahlerplein 90, 1082 MA Amsterdam (“**Accenture**” or “**Buyer**”);

and

Meridian Data Solutions NV, a public limited liability company incorporated under the laws of Belgium (CBE: 0689.221.574), having its registered office at Rue de la Loi 99, 1040 Brussels, Belgium (“**Supplier**”).

Accenture and Supplier are referred to individually as a “**Party**” and collectively as the “**Parties**”.

RECITALS

- (A) Accenture wishes to procure certain information technology and data analytics services from Supplier on the terms set out in this Agreement.
- (B) Supplier has the expertise, capacity and willingness to provide such services on the terms set out herein.
- (C) The Parties wish to record the terms upon which such services shall be provided.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, the following terms shall have the meanings ascribed to them below:

- 1.1.1 “**Deliverables**” means all work product, reports, software, data outputs and other materials to be produced by Supplier pursuant to a Statement of Work.
- 1.1.2 “**Fees**” means the amounts payable by Accenture to Supplier as specified in the applicable Statement of Work.
- 1.1.3 “**Intellectual Property Rights**” means all patents, copyright, database rights, trade marks, design rights, trade secrets, know-how and all other intellectual and industrial property rights.
- 1.1.4 “**Statement of Work**” or “**SOW**” means a document executed by both Parties referencing this Agreement and specifying the services, Deliverables, timelines and Fees.

2. SUPPLY OF SERVICES

- 2.1 Subject to the terms of this Agreement, Supplier shall provide the services and Deliverables as specified in each SOW executed by the Parties from time to time.
- 2.2 Supplier shall perform all services with reasonable skill, care and diligence, in accordance with industry best practices and applicable law.
- 2.3 Supplier shall assign suitably qualified and experienced personnel. Supplier shall promptly replace any personnel upon Accenture's reasonable written request.
- 2.4 Supplier shall not subcontract any material part of the services without Accenture's prior written consent, not to be unreasonably withheld.

3. FEES AND PAYMENT

- 3.1 In consideration of the supply of services, Accenture shall pay the Fees in accordance with the relevant SOW.
- 3.2 Supplier shall issue valid VAT invoices within five (5) Business Days following the end of each calendar month. Payment shall be due within forty-five (45) days of receipt of a correctly rendered invoice.
- 3.3 All Fees are exclusive of VAT, which shall be applied at the applicable statutory rate.
- 3.4 In the event of a disputed invoice, Accenture shall notify Supplier in writing within fifteen (15) Business Days of receipt, specifying the grounds for dispute. The Parties shall resolve any dispute in good faith within thirty (30) days.

4. LIABILITY AND INDEMNIFICATION

- 4.1 **Mutual Cap on Liability.** Subject to Clause 4.3, the aggregate liability of either Party to the other under or in connection with this Agreement, whether arising in contract, tort (including negligence) or otherwise, shall not exceed **EUR 500,000 (five hundred thousand euros)** per Agreement Year.
- 4.2 **Exclusion of Consequential Loss.** Neither Party shall be liable to the other for any indirect, special, incidental or consequential loss or damage, loss of profit, loss of revenue, loss of business or loss of anticipated savings, even if advised of the possibility of such loss.
- 4.3 **Unlimited Liability.** Nothing in this Agreement shall limit or exclude the liability of either Party for:
- (a) death or personal injury caused by its negligence;
 - (b) fraud or fraudulent misrepresentation; or
 - (c) any other liability which cannot be lawfully excluded.
- 4.4 Supplier shall indemnify and hold harmless Accenture against any third-party claims arising from Supplier's wilful misconduct or gross negligence in the performance of the services.

5. TERM, RENEWAL AND TERMINATION

- 5.1 **Initial Term.** This Agreement shall commence on the Effective Date and continue for an initial period of two (2) years (the “**Initial Term**”), unless earlier terminated in accordance with this Clause 5.
- 5.2 **Automatic Renewal.** Upon expiry of the Initial Term, and upon expiry of each subsequent Renewal Term, this Agreement shall automatically renew for successive periods of one (1) year (“**Renewal Term**”), unless either Party serves written notice of non-renewal not less than **ninety (90) calendar days** prior to the expiry of the then-current term.
- 5.3 **Termination for Cause.** Either Party may terminate this Agreement with immediate effect by written notice if:
- (a) the other Party commits a material breach and fails to remedy it within thirty (30) days of written notice specifying the breach;
 - (b) the other Party becomes insolvent, is subject to administration, receivership, bankruptcy or any analogous procedure; or
 - (c) the other Party ceases or threatens to cease to carry on business.
- 5.4 **Termination for Convenience.** Either Party may terminate this Agreement for convenience upon not less than one hundred and eighty (180) days' written notice.
- 5.5 **Consequences of Termination.** Upon termination or expiry: (i) all outstanding SOWs shall terminate unless otherwise agreed in writing; (ii) each Party shall promptly return or securely destroy the other's confidential information; (iii) accrued payment obligations shall survive.

6. CONFIDENTIALITY

- 6.1 Each Party undertakes to maintain strict confidentiality of the other Party's Confidential Information and not to disclose it to any third party without prior written consent, except as required by applicable law.
- 6.2 Confidentiality obligations under this Clause 6 shall survive termination or expiry of this Agreement for five (5) years.

7. GENERAL PROVISIONS

- 7.1 **Governing Law.** This Agreement shall be governed by the laws of the Netherlands.
- 7.2 **Dispute Resolution.** Disputes shall first be referred to senior management. If not resolved within thirty (30) days, either Party may refer the dispute to the exclusive jurisdiction of the courts of Amsterdam.
- 7.3 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties and supersedes all prior negotiations and representations.
- 7.4 **Amendments.** No amendment shall be binding unless made in writing and signed by authorised representatives of both Parties.
- 7.5 **Force Majeure.** Neither Party shall be liable for any failure or delay due to circumstances beyond its reasonable control.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

For and on behalf of ACCENTURE BV

Authorised Signatory

Name: _____

Title: _____

Date: _____

**For and on behalf of MERIDIAN DATA
SOLUTIONS NV**

Authorised Signatory

Name: _____

Title: _____

Date: _____